

Supervisor Responsibilities & Due Diligence – Course Script

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Supervisor Responsibilities & Due Diligence – Course Script

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Supervisor Responsibilities and Due Diligence

Intro

Supervisor Responsibilities and Due Diligence

Welcome to Supervisor Responsibilities and Due Diligence.

Before You Begin

Workplace Safety and Prevention Services would like to welcome you to your eCourse.

Clock Icon

This course will take approximately three hours to complete. Exit and resume from where you left off at any point. To pause/resume a slide, use the spacebar. This course contains knowledge check questions to apply your learning. Revisit questions using the menu to the left.

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Select 'Navigation' to learn how to navigate through this e-course.

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Accessible features include: a searchable course script file, closed captioning, and keyboard-only navigation. Refer to Accessibility Features Resource for details.

For additional accessibility accommodations access the course Help.

About This Course

This course has activities, knowledge checks, case studies, and videos to enhance your learning experience. In Module 1 there is an option to check your understanding before reviewing the topics in that module, and only review those you need a refresher on. At the end of the course, there is a final knowledge check that covers all topics discussed in the course. Depending on your level of knowledge, this course can take anywhere from 2 to 3 hours to complete.

Course Overview

This course is intended to provide supervisors with the tools required to demonstrate due diligence in the workplace.

- In Module 1, The Foundation of Health and Safety in Ontario, we will summarize the duties and responsibilities of workers, supervisors and employers in accordance with the Occupational Health and Safety Act or, OHSA. Once you have an understanding of these duties, we will look at the process for responding to and managing hazards.
- In Module 2, An Internal Approach to Due Diligence, this is where we will explore some examples of due diligence in the workplace and provide you with some steps and strategies for demonstrating due diligence in the workplace.
- In Module 3, A Case Study: Due Diligence in the Workplace, you will be presented with a task of examining a real-life case study and determine if due diligence was demonstrated.
- In Module 4: Course Completion, you will review the course summary and complete the final knowledge check

There is much to cover on the topic of due diligence. But first, why is the topic of due diligence so important?

Why Take This Course?

You are most likely taking this eCourse because you are taking on the additional responsibility of a supervisor. As a supervisor, you play a critical role in workplace health and safety.

After successfully completing this course, you will have access to a Certificate of Completion to acknowledge your achievement.

Why Is Due Diligence Important?

Every year a number of Ontarians get sick, hurt, or die from a work-related incident. The Ministry of Labour, Immigration, Training and Skills Development keeps an archive of cases in which employers and supervisors have been fined/convicted for demonstrating lack of due diligence in their respective workplace. Select each of the three cases to review a court bulletin with details of each incident, including fines and penalties that were imposed.

Case 1: In 2023, a worker received serious injuries on the job. Their injuries resulted in a \$65,000 fine for the manufacturer, and \$3,000 fine for the supervisor.

Case 2: In 2023, two workers suffered critical injuries when they fell down an elevator shaft. The Constructor, Employer, Supervisor and Director were all fined, \$380,000 in total.

Case 3: In 2022, a worker was killed while working. The fatality resulted in a \$22,000 fine for the supervisor.

Why is Due Diligence Important?

Let's look at some of the statistics obtained from WSIB related to injuries, claims, fatalities and benefit payments in the workplace.

Injuries

According to WSIB 2023 highlights for all businesses, 35% of allowed lost-time claims for injuries were due to sprains and strains, 12% were due to a fall on the same level, and 12% of claims were for injuries to the low back.

Claims

Based on 2023 claims, there were more than 54,000 lost time claims, representing 36% of all allowed claims that year. These are claims where workers were unable to work for a time after the incident. There were also 775 allowed mental stress claims, where the person could experience post traumatic stress disorder, chronic mental stress or traumatic mental stress.

Fatalities

In 2023, 84 people lost their lives due to a workplace traumatic fatality. In 2023, 142 people lost their lives due to an occupational disease fatality.

Benefit Payments

In 2023, over \$1.99 billion in benefit payments were made. This total was comprised of 54% for loss of earnings, 29% for health care, 8% for survivor's benefits, and less than 5% for workers' pension, future economic loss, non-economic loss, and external providers.

Module 1

Module 1: The Foundation of Health and Safety in Ontario.

By the end of this module, you will be able to summarize the duties and responsibilities of all workplace parties in accordance with the Occupational Health and Safety Act, and recognize the process for managing hazards in the workplace. This module will take approximately 1 hour to complete.

Choose Your Path

To start this course, you have two options. The first option is to check your understanding if you have previous general health and safety knowledge. This involves answering a knowledge check with ten questions. Where you answer the question incorrectly, you will be prompted to review the related topic before proceeding to Module 2.

The second option is to review all topics without completing the knowledge check. This will take you directly to the Module 1 Menu and you will review all topics before proceeding to Module 2.

Module One Menu

This is the list of foundational topics for Module Two. The topics marked with stars are required for you to review. The checkmarks indicate topics you have reviewed or tested out of and are now optional.

The Occupational Health and Safety Act

Understanding the Occupational Health and Safety Act (OHSA), its components and regulations is the first step towards due diligence. The Occupational Health and Safety Act is also known as the Act, the OHSA, or the 'green book'. It outlines the duties and responsibilities of all workplace parties which are outlined in sections 25 to 28:

- Section 25-26: Employer
- Section 27: Supervisor
- Section 28: Worker

OHSA Regulations

Regulations provide more detail on how the law operates. There are a number of regulations that apply to Ontario workplaces. Some apply to all workplaces, while others are specific to a workplace based on the type of work carried out.

Additional duties of a supervisor are set out in some regulations under the OHSA.

The Internal Responsibility System

The Internal Responsibility System is also known as IRS. It requires everyone to take responsibility for communicating workplace health and safety concerns in an open and cooperative environment.

Employers

Employers provide a safe environment, establish the health and safety program and policy, and are responsible for health and safety within the organization.

Supervisors

Supervisors monitor work, make sure workers are trained to do their jobs, and tell workers about hazards.

Workers

Workers comply, participate, and bring concerns to the attention of the company.

Employers: Section 25-26

We'll start with employers. Select each tab to review a summary of the duties and responsibilities of an employer.

These duties and responsibilities can be found in sections 25 and 26 of the Act.

1. Establishing a health and safety program
2. Determining the rules for working safely
3. Training workers on the rules and procedures for working safely
4. Providing the right tools and equipment and ensuring they are maintained
5. Managing hazards to eliminate or reduce the risk of injuries and illness
6. Appointing a competent person as a supervisor
7. Taking every precaution reasonable

Naloxone in the Workplace

As of June 1, 2023 the Occupational Health and Safety Act requires employers to ensure that naloxone be available in some workplaces in case a worker has an opioid overdose.

Employer's Duties re. Naloxone Kits

Section 25.2 states that if an employer becomes aware, or ought reasonably to be aware, that there may be a risk of a worker having an opioid overdose at a workplace where that worker performs work for the employer, or where the prescribed circumstances exist, employers must comply with certain requirements.

For more information refer to:

- OHS Act, section 25.2
- Ontario Regulation 559/22
- Government of Ontario website (www.ontario.ca/page/naloxone-workplace)

OHS Act Definition – A Competent Person

One of the duties and responsibilities of an employer is to appoint a competent person to be a supervisor. In order for a supervisor to be competent, each of these criteria must be met.

1. A person is competent if they are qualified because of knowledge, training and experience to

- organize the work and its performance
2. A person is competent if they are familiar with the OHSA and the regulations that apply to the workplace, and
 3. A person is competent if they have knowledge of any potential or actual danger to health or safety in the workplace

Check Your Understanding (Supervisors)

Definition of a supervisor: A supervisor would include a person who...

- A. has the title supervisor?
- B. has at least 5 workers reporting to them? or
- C. has either charge of a workplace or authority over a worker?

Select a response, and then select submit.

Definition of a Supervisor

There are two key words in the definition of a supervisor. Charge, and authority.

“Charge of workplace” refers to broad control over the planning of work and how it is carried out.

“Authority over a worker” can be seen as a more specific power to ensure a worker’s compliance with directions.

Definition of a Supervisor Cont’d

If you are in any of the following positions, or have either charge of a workplace or authority over a worker, you are considered a supervisor under the OHSA:

- Lead Hand
- Supervisor
- Manager
- Foreman
- General superintendent

Check Your Understanding (Supervisor Duties)

A supervisor is responsible for training workers on how to do their job safely, enforcing rules, including the use of safety equipment, machine guarding and...

- A. taking every precaution reasonable?
- B. establishing a health and safety program? or
- C. making changes to workplace policies.

Select a response, and then select submit.

Supervisors: Section 27

These duties and responsibilities can be found in section 27 of the Act.

- Training workers on how to do their job safely
- Enforcing rules, including the use of safety equipment and proper use and handling of

- equipment
- Taking every precaution reasonable

Taking Every Precaution Reasonable

Previously, the phrase “taking every precaution reasonable” was used to describe one of the duties and responsibilities of a supervisor. Let’s explore this in more detail.

Taking every precaution reasonable means that as a supervisor you should...

- know the OHSA and the various Regulations attached to it that apply to your workplace,
- make sure workers wear and use the right protective equipment,
- tell workers about the hazards in their work and take steps to eliminate hazards in the workplace, and where elimination is not possible, to control them,
- plan the work so that it can be done safely, and,
- make sure workers know and follow through on their health and safety duties.

These are the minimum requirements outlined in the Act, however, it is a good start towards demonstrating due diligence. We will continue to explore the duties and responsibilities throughout this course. Next, we will review the duties and responsibilities of workers.

Duties and Responsibilities of a Supervisor Continued

As we progress through this course, you will be presented with various examples on how this can be demonstrated in the workplace. Take note of these examples, and think about how you can demonstrate that you have taken every precaution reasonable, under the circumstances, to protect workers in your workplace.

In the Workplace

How does this translate in the workplace? In your workplace, you can start by:

- Telling workers about hazards and dangers and responding to their concerns
- Showing workers how to work safely and making sure they follow the law, and the workplace health and safety policies and procedures
- Making sure workers wear and use the right protective equipment
- Doing everything reasonable in the circumstances to protect workers from being hurt or getting a work related illness

Definition of a Worker

When reading the duties and responsibilities of a worker, remember that supervisors are also considered workers.

Let’s take a look at who else is considered a worker.

Definition of a Worker Continued

A worker is any person who receives payment to perform or supply services, including:

- Unpaid secondary school students participating in a work experience program, or a program approved by a post secondary institution
- Cooperative students, interns, and apprentices
- Unpaid trainees who are not employees for the purposes of the Employment Standards Act (ESA) 2000 because they meet certain conditions

Volunteers

It's important to note that volunteers are not covered in this definition of a worker

Workers: Section 28

The duties and responsibilities of workers can be found in section 28 of the Act.

1. Work in compliance with the provisions of this Act and the regulations
2. Use or wear the equipment, protective devices or clothing that the workers employer requires to be used or worn
3. Report to their employer or supervisor the absence or defect in any equipment or protective device of which the worker is aware and which may endanger themselves or another worker
4. Report to their employer or supervisor any contravention of this Act or the regulations or the existence of any hazard of which they know

Duties and Responsibilities of Workers

Recall from the internal responsibility system: Workers comply, participate, and bring concerns to the attention of the company.

This means that not only are workers following safe work procedures and rules, and using the safety equipment properly, they are required to report hazards and injuries to their supervisors. This is an important contribution to the IRS as it allows supervisors to respond to and address hazards before an incident occurs.

Check Your Understanding (Worker Rights)

The rights of workers: In order to support the Internal Responsibility System, workers should understand their rights, including the right to know, the right to participate and...

- Is it A, the right to say no to any task they are asked to complete
B, the right to refuse unsafe work, or
C, neither of the above

Select a response, and then select submit.

The Rights of Workers

In the workplace, workers have rights. There are three rights supervisors should be aware of. The Right to Know, The Right to Participate, and The right to Refuse Unsafe Work. Let's look at each of these in

detail.

The Right to Know

All workers have the right to know about the actual and potential hazards they may be exposed to in the workplace. This means the right to be trained and have information on machinery, equipment, working conditions, processes and hazardous substances. Training all workers keeps the goal of workplace health and safety in mind.

The Right to Participate

Workers have the right to participate in identifying and resolving health and safety issues in the workplace, and can also make recommendations about improving health and safety. This right is expressed by the ability to participate as a member of a Joint Health and Safety Committee (JHSC) or as a Health and Safety Representative and through their duty to report hazards.

The Right to Refuse Unsafe Work

Workers can refuse work that they believe is unsafe to either their own health and safety or that of another worker, including workplace violence. There is a defined procedure that the worker must follow which is described in Part V of the Act. The worker has the obligation to tell the employer or supervisor that they are refusing work and must remain in a safe place available for investigation.

Supporting Workers Rights

As a supervisor, it is important that you know how to support worker rights.

Right to Know

Supporting the rights of workers is a team effort. Open and two-way communication is vital in protecting workers from health and safety hazards in the workplace.

- Keep workers informed about potential hazards
- Keep the lines of communication open
- Answer questions and/or locate the answers

Right to Participate

- Encourage workers to raise concerns and provide feedback
- Promote a proactive culture in which controls/measures are put in place to prevent an incident from occurring
- Educate workers on how they can become a Health and Safety Representative or Joint Health and Safety Committee Member

Right to Refuse Unsafe Work

As a supervisor, you may encounter work refusals, so it is important to spend time getting to know this section of the Act.

- Ask questions of your employer to ensure you understand the process
- Educate workers on the process of work refusals
- Address concerns raised before it becomes a work refusal
- Encourage communication

Video – Hazards

Throughout this course, you will hear the term hazards used frequently. Hazards are a source of potential harm to a worker. As a supervisor, you should know the hazards associated with the workplace so that they may be addressed and properly managed.

Video Script:

Throughout this training, you've constantly heard the term workplace hazard. But what exactly is a hazard? Well, it's anything that is a potential source of harm to a worker. Harm is any physical injury or damage to health.

There are six categories of hazards.

We'll begin with **Biological hazards**. These are tiny living substances. They can be found almost everywhere. Mould and mildew are actually living hazards that collect on damp surfaces. Bacteria found on clothes and work surfaces are some of the most common forms of this hazard, and they so easily get into the body. Of course, many biological hazards come from people themselves; and people can be so good at passing them around.

Chemical hazards are dangers caused by toxic non-living substances. Things like insecticides and weed killers, paint thinners and solvents are another common form of chemical hazard; so are vapours given off by chemicals and smoke or exhaust.

Safety hazards are dangerous machines, equipment and situations that can injure us. Sometimes workers can be hurt by machines or equipment. Safety hazards also include things people could slip on or trip over or fall from. Electricity is also a safety hazard.

There are four **physical hazards**. Generally, any sound averaging more than 85 decibels for 8 hours is considered a noise hazard. Vibration is another physical hazard. Vibrating tools are common sources.

The third physical hazard is radiation. Radiation from the sun is a common source and some X-ray equipment and lasers give off radiation. The last physical hazard is heat and cold. The Ministry of Labour, Immigration, Training and Skills Development (MLITSD) has set out guidelines to help ensure workers are properly protected when it's too hot or cold to maintain normal body temperature.

Musculoskeletal disorders are commonly called MSDs. MSD hazards are motions and activities that put strain on muscles, tendons, bones, ligaments or joints. Things like repeating the same movements can contribute to the cause of MSDs. Even when the task seems easy and strain from the activity is low, injuries can develop overtime. Any movements that result in poor body positions, such as twisting, stretching, overreaching or bending, can lead to MSD injuries. Excessive force is another cause of these injuries. This occurs when the body strains trying to push or pull and move or lift heavy objects.

The last type of hazard is **psychosocial hazards**. These are conditions or activities that affect emotional or psychological well-being. Common examples are threats and verbal abuse, and these hazards include issues from outside the workplace when it occurs in the workplace, but not all psychosocial hazards are

threats and abuse. They can be situations that make people anxious and uncomfortable; and sometimes stress at work can get so unbearable that it becomes a hazard.

Six Hazard Categories

As the video stated, there are 6 categories used to classify hazards in the workplace.

1 – Safety

Can cause physical injury or loss of life or does not fall into any other category. Examples include: forklifts, machines, slips, trips and falls.

2 – Psychosocial

A condition or activity that adversely affects physical, mental and/or emotional well-being. Examples include:

mental harm, stress, workplace violence and harassment.

3 – Physical

A form of energy that can harm the body when exposure takes place such as noise, vibration, extreme temperature and radiation. Examples include: stamping presses, conveyors, extreme heat or cold, lasers, or x-rays.

4 – Musculoskeletal Disorders

It is an injury to a part of the human system that consists of tendons, nerves, joint, spinal discs and other tissues. MSDs are associated with three main hazards - force, repetition, and awkward postures.

5 – Chemical

Toxic substances that can take on many forms such as gases, vapours, dust, fumes, fibres and mists. Examples include: asbestos, cleaners, and paints.

6 – Biological

Living things or substances from living things that can cause illness or disease in human beings. Examples include: mold, mildew, and viruses.

What is the Value of Managing Hazards?

Why do we want to manage hazards? What's in it for us?

- The company is complying with legislation, thereby reducing the risk of being fined for non-compliance.
- Staff are engaged. They work together because managing hazards is a shared responsibility.
- Preventative action better protects employees in the workplace. The company can take a proactive approach to control hazards before they cause major harm.
- Having a successful hazard management system should also see reduced costs due to reduced, or prevented incidents.

Now that we have reviewed the value of managing hazards, we will look at hazards and discuss what we can do to prevent them from causing harm to workers.

Workplace Health and Safety Hazards

Another way to categorize hazards is by either health hazards, or safety hazards.

- Health Hazards have the potential to cause illness or disease.
- Safety Hazards have the potential to cause injury.

Let's explore more about common hazards in the workplace.

Common Health and Safety Hazards

Here is a list of common health and safety hazards that exist in the workplace, across various industries, including:

- Musculoskeletal Disorders
- Motor Vehicle Incidents
- Machinery and Equipment
- Slips, trips, and falls, and
- Mental health and workplace violence and harassment.

Do any of these exist in your workplace?

Musculoskeletal Disorders (MSDs)

An MSD is an injury of tendons, nerves, joint, spinal discs and other tissues. When working alone or together, force, awkward posture, duration and/or repetition can cause tissues in our body to be overloaded, thus resulting in an MSD injury.

Motor Vehicle Incidents (MVIs)

Motor vehicle incidents have been identified as one of the top hazards in the workplace.

Vehicles involved in workplace incidents include, but are not limited to cars, forklifts and dump trucks.

Machinery and Equipment

Machinery and equipment hazards can cause serious injuries and deaths, and include, but are not limited to, bypassing safeguards, poor machinery design, not using energy isolation and poor equipment maintenance..

Slips, Trips and Falls

Slips, trips and falls can happen to anyone. Whether it's ice on a sidewalk, while climbing a ladder, having something block your pathway or falling while walking up a flight of stairs.

Mental Health, Workplace Violence and Harassment

Workplace violence and harassment can adversely affect your physical, mental and emotional well-being. Abuse, violence, offensive remarks and bullying are some examples of workplace violence and

harassment.

Responding to Hazards

The topic of hazards brings forth the importance of being proactive in addressing and being aware of hazards.

This process represents a continuous cycle that when referred to, can contribute to a safe and healthy work environment.

Four-Part Process: RACE

The process includes recognizing, assessing, controlling and evaluating hazards. Each are equally important to responding to hazards in the workplace.

- **Recognize** - Identify existing or potential hazards, gather information about the recognized hazard
- **Assess** – Determine the risk level of the hazard
- **Control** – Eliminate or reduce the hazard
- **Evaluate** – Check if the hazard has been eliminated or controlled

RACE Process: Recognizing Hazards

Tab 1 - Recognize where the potential hazards are in the workplace by:

- Watching work being done
- Talking to workers
- Participating in workplace inspections
- Looking at reports and records
- Listening to workers concerns

Tab 2 - Workplace inspections are conducted to recognize hazards that require attention and to gather information to make recommendations to the employer. This is a legal requirement of the OHSA.

Tab 3 - Supervisors should continuously conduct workplace inspections with their employer or the JHSC worker member or a Health and Safety Representative for workplace hazards. While conducting workplace inspections, supervisors should pay close attention to the factors that can contribute to workplace hazards.

Tab 4 - Factors that can contribute to workplace hazards:

- **People** - This refers to the actions/inactions of workers
- **Equipment** - The tools and machines workers use
- **Materials** - The way workers handle materials and chemicals in the workplace
- **Environment** - The conditions where the work is being performed
- **Process** - Assessing the effectiveness of how the worker is using equipment or performing the

task

RACE Process: Assessing Hazards

Tab 1 - Assessing a hazard allows you to evaluate your workplace conditions and practices against legal and industry standards. A hazard assessment should be compared to all legislated standards to identify the extent to which it meets or does not meet (i.e. violates) the legislated requirements.

Tab 2 - If no legislated requirements exist, other standards should be used for comparison, such as:

- MLITSD guidelines
- CSA standards
- Professional standards
- Workplace policies and procedures
- Manufacturers' and suppliers' recommendations
- Industry best practices

Tab 3 - If there are a large number of hazards identified in the recognition phase, the assessment phase can help prioritize which hazards require attention first. Recognized hazards that threaten the life of a worker or could cause permanent disability, should be given the highest priority for immediate action. Also note that all hazards must be controlled.

Tab 4 - Here are a few questions to think about when assessing a hazards:

- How can the worker get hurt or sick?
- How likely is the hazard to affect worker health and safety?
- How often, how much and/or for how long are workers exposed to the hazard?
- How many people are actually or potentially exposed to the hazard?
- What is the likelihood of being seriously injured from exposure to the hazard?

Risk Evaluation Chart

The risk evaluation chart can be used to determine the risk level of hazards.

1. When determining the probability of injury, you are looking at how likely the hazard will cause illness or injury - high, medium or low.
2. Severity of injury looks at how serious the harm could be - major, moderate or minor.

Determining the Risk Level

Probability and severity values will be used to determine the risk level of the hazard using the Risk Evaluation Chart. Where the probability and severity intersect on this chart is the risk level.

High Risk

A high risk level means immediate action must be taken. Control of this hazard is urgent. Appropriate

people within the company need to be notified and decisions made.

Medium Risk

A medium risk level means it is important for the company to take action to control this hazard but this doesn't need to be done immediately.

Low Risk

A low risk level means this hazard can be controlled through regular general maintenance.

Location of Controls

Where controls are applied to address a hazard is an important factor to consider. There are three possible locations where controls can be applied to address a hazard:

- At the source
- Along the path
- At the worker

At the Source:

Controls at the source are preferred

Examples include:

- Using a less hazardous product
- Ensuring that walkways and floor surfaces are as flat and slip-resistant as possible

Along the path

Controls along the path are those which are between the hazard and the worker.

Example:

- General ventilation
- Portable barriers
- Keeping work areas organized
- Guards on machines

At the worker

Controls at the worker should be used as a last resort.

Examples include: having the worker wear personal protective equipment or PPE, such as safety goggles, respirators, gloves, and safety shoes etc.

Even though controls at the worker are considered the least effective control, PPE does provide protection. The law requires you to wear it for certain tasks and your employer may require you to wear it.

Hierarchy of Controls

There are various methods used in workplaces to control hazards. Let's look at one of the more established methods of controlling hazards called the Hierarchy of Controls.

Controls follow a hierarchy of effectiveness, from most to least effective:

- **Elimination** - Removes the hazard from the workplace all-together.
- **Substitution** - Replacement of hazardous material, equipment or process with a less hazardous one. An example would be using vinegar to clean tables instead of a solvent based cleaner.
- **Engineering** - The installation of manufactured devices to minimize the hazard. An example would be installing ventilation or a barrier.
- **Awareness** - Mechanisms to alert or warn workers about the hazard. An example would be use of fire alarms or posters.
- **Administrative** - A combination of policies, procedures and education to minimize worker exposure to the hazard. An example would be providing training to workers on hazards.
- **Personal Protective Equipment** - Any device worn or used by a worker to protect against the hazard. An example would be using gloves when handling toxic chemicals.

RACE Process: Evaluating the Control of Hazards

After controls have been put in place, evaluate how well the hazard controls are working by:

- Talking about the controls, work and hazards with workers
- Assessing to see if the controls have improved the health and safety of workers
- Listening to what workers have to say, and if there are any new hazards
- Consulting with the Joint Health and Safety Committee (JHSC) or Health and Safety Representative on the effectiveness of hazard controls that were put in place.

RACE Process: Evaluating the Control of Hazards

Evaluating the controls will determine how well the controls eliminated or minimized the hazard and if any new hazards have been created as a result of the controls put in place. If unable to correct a hazardous situation on your own, consider other sources of information such as internal resources, the employer and the OHSA to identify legal requirements.

Duties and Responsibilities

We'll summarize this introduction with a brief video, which provides an overview of the Occupational Health and Safety Act. The video reviews the Internal Responsibility System, duties and responsibilities of all workplace parties, and the rights of workers.

Employers, Supervisors and Workers

Each workplace party, including employers, supervisors, and workers, has a role to play in ensuring a safe and healthy workplace.

Employers

Under section 25 and 26 of the OHSA, duties and responsibilities of an employer include:

- Establish a health and safety program
- Determine the rules for working safely
- Train workers on the rules and procedures for working safely
- Provide the right tools and equipment and ensure they are maintained
- Manage hazards to eliminate or reduce the risk of injuries and illness
- Appoint a competent person as a supervisor
- Take every precaution reasonable

Supervisors

Under section 27 of the OHSA, duties and responsibilities of a supervisor include:

- Train workers on how to do their job safely
- Enforce rules, including the use of safety equipment and proper use and handling of equipment
- Take every precaution reasonable

Workers

Under section 28 of the OHSA, duties and responsibilities of a worker include:

- Work in compliance with the provisions of this Act and the regulations
- Use or wear the equipment, protective devices or clothing that the worker's employer requires to be used or worn
- Report to their employer or supervisor the absence or defect in any equipment or protective device of which the worker is aware and which may endanger themselves or another worker
- Report to their employer or supervisor any contravention of this Act or the regulations or the existence of any hazard of which they know

Module 1 Summary

Section 27 of the Occupational Health and Safety Act requires supervisors to carry out specific duties.

Module 2

Module 2 - Internal Approach to Due Diligence

By the end of this module, you will be able to:

- Define due diligence and provide examples of how supervisors can exercise it in the workplace
- Recognize the steps and identify strategies for demonstrating due diligence

This module will take approximately 1 hour to complete.

Check Your Understanding – Duties

True or False

Workers, supervisors and employers have the duty to take every precaution reasonable to protect all workers.

Due Diligence in the Workplace

It is the responsibility of employers and supervisors to take every precaution reasonable to protect all workers.

Impact of Injuries in the Workplace

Should an injury, illness, or fatality occur, the costs can have a huge impact on our families, the community, employers and ourselves.

Direct and Indirect Costs

The costs can be grouped into two categories – direct and indirect costs.

Direct Costs

Direct costs include monetary impacts such as:

- Fines
- Penalties
- Prescriptions, and
- Retraining or replacing workers

Indirect Costs

Indirect costs can have an impact at a human level (to the person) and between the company and the public. Indirect costs do not have a dollar value associated to it however, the costs impact overall emotional health quality of life and morale. Indirect costs include non-monetary impacts such as:

- Stress
- Company reputation, or
- Overall health

Direct and Indirect Costs

Some of these costs can either directly, or indirectly impact the worker. Here are some examples of costs associated with workplace injuries:

- Prescription costs
- Home care costs
- Company reputation at risk
- Surgery
- Pain
- Stress
- Low morale

- Fines and penalties
- Replace or retrain other workers
- WSIB Premiums

Impact of Injuries in the Workplace Continued

Direct Costs – Financial Impact

As a result of incidents in the workplace, these are some of the payouts made by the Workplace Safety and Insurance Board (WSIB) in 2019.

- Workers' Pension: \$492.4M
- Loss of Earnings: \$1,032.0M
- Health Care: \$551.4M
- Survivor Benefits: \$206.8M

Indirect Costs

As an example, low morale as a result of an incident can have an impact not only on the worker involved in the incident, but also others around them. And can you imagine trying to recover or quantify these costs? Quantifying the pain and suffering experienced as a result from an injury, illness or fatality, are immeasurable.

Case Study: Fatal Workplace Incident

Let's explore a case study to show an example of some of the pain and suffering one can experience as a result of an incident.

Point 1: Several employees were replacing a sewer line at an excavation company. An incident occurred in which a worker was buried and died of a blunt traumatic brain injury.

Point 2: The company president attempted to come to his aid, but without success. He sustained fractures to both legs and remained in a coma for two days.

Point 3: On March 1, a Court found the company president, guilty of manslaughter under the Criminal Code. Failure to follow workplace safety standards under the Criminal code, section 220 - 222 and 236(b) was noted.

Point 4: In convicting, the court found that he had committed an "unlawful act" by not complying with provincial health and safety legislation.

This decision applies the provincial health and safety law in a new way in a criminal prosecution.

Upon Conviction – Criminal Code

In the case study, the company president was found guilty and criminally prosecuted under the Criminal Code. Section 217.1 of the criminal code provides a clear definition of criminal liability to all

organizations and individuals who direct the work of others within Canada. Everyone who undertakes, or has the authority, to direct how another person does work or performs a task is under a legal duty to take reasonable steps to prevent bodily harm to that person, or any other person, arising from that work or task.

Upon Conviction – Monetary Penalties (1 of 2)

In addition to the charges under the criminal code previously discussed, two monetary penalties may be imposed. Fines and penalties can also be imposed on individuals, such as workers, supervisors and employers.

A victim surcharge may also apply, which is a monetary penalty imposed on offenders at the time of sentencing.

Upon Conviction – Monetary Penalties (2 of 2)

Upon a conviction by a court, directors or officers are liable to a maximum fine of \$1,500,000 or to imprisonment for not longer than 12 months or both. An individual person, such as a supervisor or worker, is liable to a maximum fine of \$500,000 and for corporations:

- (a) the maximum fine that may be imposed upon the corporation is \$2,000,000; and
- (b) for a second or subsequent offence that results in the death or serious injury of one or more workers in a two-year period, the minimum fine that may be imposed is \$500,000.

What Do You Need to Do?

As a supervisor, what do you need to do to avoid workplace incidents and injuries?

Start by:

- Understanding your duties and responsibilities as a supervisor
- Know and understand the Act
- Comply with the Act

Complying with the Act

Simply complying with all parts of the Act does not necessarily mean that a supervisor has demonstrated due diligence. The Act sets out the minimum requirements, therefore a supervisor would need to demonstrate that they took “every precaution reasonable” to protect all workers. For a supervisor to demonstrate that they took every precaution reasonable in the circumstances to protect all workers, the supervisor must be able to provide proof or evidence that is objective.

Objective Evidence Continued

When providing objective evidence, what details would you document? Choose all that apply.

- Actions taken
- Observations
- Who was involved

- Specifics
- Dates and times
- Detailed information

Documentation

Documentation should include:

- observations, not opinions,
- detailed information and specifics,
- dates and times,
- actions taken, including follow-up and any disciplinary actions taken, and
- who was involved.

These are all considered to be objective evidence if included in your documentation. Documenting the details of the steps you took to prevent an incident, should it occur, is an important part of the internal approach to due diligence, and should be based on factual information.

An Internal Approach to Due Diligence

The internal approach to due diligence is a strategy that can be incorporated on a daily basis to ensure the health and safety of all workers. This approach or strategy can be adapted as a base for any workplace environment, and involves providing information, instruction and supervision to all workers.

An Internal Approach to Due Diligence Con't

Providing information is the employers duty, and ensuring that workers receive instruction and supervision is the duty of the supervisor.

Providing Information

The employer has the ultimate responsibility for providing information to workers. This includes a legal obligation to include codes, standards or guidelines to be adopted as part of their policies and procedures. Policies and Procedures are information that is to be communicated at a company-wide level to all workers. These documents enforce guidelines, and encourage a safe and healthy work environment for all.

Information - Policies

An employer would have considered the legal requirements including any codes, standards or guidelines to be included or adopted as part of their policies and procedures. Policies and procedures reinforce guidelines, and encourages a safe and healthy work environment for all. A policy is a document that tells people what to do and why they are doing it. An example of this type of document is a Workplace Violence and Harassment Policy.

Information - Procedures

Procedures tell people how to do something. They provides specific directions that are applicable to the

duties of workers. The procedures for a workplace violence and harassment policy, would include the steps for reporting workplace violence and harassment should an incident occur. It would also include who the incident should be reported to.

Supervisor Responsibilities

Supervisors must know and understand workplace policies and procedures specific to the workplace as they are responsible for providing instruction and supervision to workers.

Providing Instruction and Supervision

As mentioned previously, supervisors are responsible for providing instruction and supervision to all workers.

This includes providing education and training, monitoring for substandard conditions and practices, and ensuring compliance through the actions taken to correct those substandard conditions and practices.

Instruction - Education and Training

Select each tab to review how both the employer and supervisor are important when it comes to providing instruction to workers in the form of education and training.

- As a supervisor, you too are a worker. Therefore, the employer must provide education and training to you so that you may do the same for workers.
- Providing education and training to workers addresses their “Right to Know” and would include any information that could affect their health and safety.
- Education is documented information on a topic that is shared with a worker.
- As a supervisor, the goal is to ensure that workers are gaining further knowledge about their job and workplace environment.
- Also note that it is important to document when a worker receives education on the job as this is part of your due diligence.
- Training is providing detailed hands-on specific information with workers.
- “I show you, you show me” is the approach one should use.
- Show workers how to perform a task then, have them show you. This allows them to demonstrate that they know how to perform the task.
- Once you have provided instruction, it is time to supervise the work being done.

Supervision

Once you have provided instruction, it is time to supervise the work being done. This involves monitoring and compliance.

Monitoring refers to checking for substandard conditions and practices in the workplace by confirming if workers are working in compliance to policies and procedures.

Compliance involves the actions taken after monitoring has taken place.

Supervision - Monitoring

Hazards are typically identified during workplace inspections; workers may also report hazards of unsafe conditions directly to their supervisor.

Should a hazard be identified at the monitoring stage, supervisors must be prepared to respond in a timely manner, and adhere to policies, procedures, and applicable legal requirements for responding to that hazard.

The RACE process is used when responding to a hazard that has been identified.

Supervision - Compliance

It is the correction of substandard or unsatisfactory conditions and practices. To verify if workers are being compliant, document observations including work orders, log book entries, and joint health and safety committee recommendation reports. Include corrective actions taken, and any progressive discipline of a worker.

The goal here is to reinforce safe work practices, and reduce the risk of injury or harm to all workers.

Check Your Understanding – Compliance

True or False

If you walk by a worker who isn't following the correct procedure or using the right safety gear, you are not required to do anything about it.

Select a response and then select Submit.

Supervision – Compliance Continued

Catch people doing things right

- Catching someone doing things right is a very positive message and helps with motivation.
- Others will hear and be impacted by the positive experience.
- Walk around and observe and look for people doing things right and compliment them.

Due Diligence Cycle

Education is documented information on a topic that is shared with a worker.

Training provides detailed hands-on information to workers. Supervisors can use the “I show you, you show me” approach.

Monitoring involves checking for substandard conditions and practices in the workplace.

And finally, **compliance** is the correction of substandard conditions and practices in the workplace. All of the steps in this cycle should be documented.

Due Diligence Approaches

There are many factors that exist outside, and within the workplace that influence a supervisor's actions for due diligence.

The Occupational Health and Safety Act, or OHSA, outlines the minimum requirements of the duties and responsibilities of a supervisor. It is important to know and understand the Act, its regulations and how it can be applied to the workplace.

The Workplace: Know your company's policies and procedures, enforce rules, and don't forget to keep a record of detailed documentation.

Communication: Communicate the rules to workers. This can be done in many ways and depends on your work environment. And remember, continue to document the details of what was communicated to workers.

Training: Be actively involved in new worker orientation, including any training that workers attend. Once a worker completes training, confirm that they understand what they learned by asking questions, or use the "I show you, you show me" approach. Keep a record of completed training.

Audits and Inspections: Be involved in audits and inspections. Investigate incidents, and take corrective action if necessary.

Strategies in Action

What can you do in your workplace?

Know Hazards - Know the potential hazards that exist in your workplace, how to address them and encourage workers to report them.

Document - Document all actions taken. Documentation should happen at every stage of the internal approach to due diligence.

Communicate - Communicate health and safety practices in the workplace, using a method suited for your work environment.

Enforce rules - Follow rules and procedures, and require workers to follow them. Lead by example.

Scenario: Exercising Due Diligence

In this scenario, imagine that you are a supervisor in a shipping and receiving department at a packaging company. You are looking for a worker to complete a task, and there are two workers to choose from. This task requires either worker to have work at heights training as they will need to take inventory of some items on the upper shelf in the shipping and receiving area. You'll need to do your due diligence

and ensure that the worker knows how to complete the task, and can do so safely.

Scenario – Worker Qualifications

Meet Sheila and Jeremy.

To learn more about their qualifications, select each worker.

This is Sheila.

- Although she is new to the shipping and receiving department, she has been with the company for over 5 years.
- She received working at heights training prior to joining the shipping and receiving department.
- However, Sheila has not completed a task that requires her to work at heights.

This is Jeremy.

- He started in the shipping and receiving department over a year ago.
- He has received working at heights training.
- However, Jeremy has not completed this type of task before.

Scenario Question 1

Complete this sentence: A supervisor's duties and responsibilities include...

- A. Training workers on how to do their job safely
- B. Enforcing rules, including the use of safety equipment and proper use and handling of equipment
- C. Taking every precaution reasonable
- D. All of the above

Select a response and then select Submit.

Review - Worker Qualifications

In reviewing the qualifications of both Jeremy and Sheila, we know that they both have received education on working at heights. Also, neither have ever completed this task before. However, there is something that sets them apart.

Scenario Question 2

Choosing the right worker

Who would you choose to complete this task? Sheila or Jeremy?

New and Young Workers

Although Jeremy and Sheila both have the information, and some instruction required to complete the task, Sheila is fairly new to the department. Sheila is considered a new worker. Although she has been with the company for over 5 years, she is new to this department.

New and Young Workers Continued

Young workers are under the age of 25. New workers can be of any age who are on the job for less than six months, or who are assigned to a new job. According to the Ontario Ministry of Labour, Immigration, Training, and Skills Development (MLITSD), workers who are new to a job, are three times more likely to be injured during the first month on the job than more experienced workers.

New Workers

Based on Sheila being a new worker, and other statistics relating to new workers, Jeremy would be the best possible person for this task. However, we must acknowledge that Jeremy has not completed this task before. Your job as a supervisor is not yet complete.

Instruction – Education and Training

Remember, when providing education and training the goal is to ensure that workers are gaining further knowledge about their job, and workplace environment. When training, show workers how to perform a task, then have them show you.

In this scenario, both Jeremy and Sheila should receive education and be provided training on working at heights.

Scenario Conclusion

Jeremy was provided with education from his work at heights training. However, there is no proof that he is able to complete the task safely. He still requires training. At times, supervisors may be required to refer back to the Instruction phase of the internal approach to due diligence and use the “I show you, you show me” technique. Providing refresher training may also be required. Once Jeremy has received education and training, he will require constant monitoring to ensure work is being done safely and in compliance with policies and procedures.

Module 2 Summary

In Summary, the internal approach to due diligence is a strategy that can be adapted as a base for any workplace environment, and involves providing information, instruction and supervision to all workers.

Check Your Understanding (1 of 5)

Upon Conviction: True or False

Fines and penalties for individuals upon conviction, can be up to \$100K in fines per charge, and up to 6 months imprisonment.

Check Your Understanding (2 of 5)

Complying with the Act: True or False

Complying with all parts of the Act means that I have demonstrated due diligence.

Select a response, and then select Submit.

Check Your Understanding (3 of 5)

True or False

It is the responsibility of the supervisor to provide information and instruction to all workers.

Select a response, and then select Submit.

Check Your Understanding (4 of 5)

True or False

When providing training to workers, it is best to use the “I show you, you show me” approach.

Select a response, and then select submit.

Check Your Understanding (5 of 5)

True or False

You should know the actual and potential hazards that exists in your workplace, how to address them and encourage workers to report them. Educate workers on how to report hazards, do not assume that workers know how.

Select a response, and then select submit.

Module 3

Module 3: Case Study: Due Diligence in the Workplace

In this module, you will apply your learning from Modules 1 and 2, and we will examine an incident and determine if due diligence was demonstrated.

This module will take approximately 30 minutes to complete.

Case Study: Workers and a Forklift

The following case study is factual, and was modified to protect the identity of the workers and company. Our case study involves a forklift incident and a collision. The parties involved include the employer, supervisor, and 2 workers. We will explore who’s responsible and whether due diligence was demonstrated.

Case Study: Your Approach

This incident involved a worker where a supervisor was either directly or indirectly involved. You will approach your case study from a different perspective - as an investigator. Imagine you are responding to an incident and all workplace parties (employer, supervisor, and workers) are all on site.

At the end of the investigation, you will determine if due diligence was demonstrated.

Case Study: Incident Details

Tab 1 - Two workers had been assigned a task at a packaging company on the other side of the establishment. In order to get there, the first worker operated a lifting device i.e. forklift, which only had one seat for the operator.

Tab 2 - This worker was able to start the forklift because the key to the forklift had been left in the ignition.

Tab 3 - The other worker proceeded to stand on the forks of the forklift, in front of, and facing the worker/operator whose field of view was then obstructed.

Tab 4 - The forklift collided with a structural steel column located in the central area of the establishment. The worker, who was standing on the forks of the forklift, suffered a crushing injury in the collision, resulting in a permanent injury.

Case Study: Question 1

What information from this case study will be key to your investigation?

- A. The forklift collided with a structural steel column resulting in a permanent injury
- B. The key to the forklift had been left in the ignition
- C. One worker proceeded to stand on the forks of the forklift while the other's field of view was obstructed
- D. All of the above

Select a response and then select Submit.

The Incident

Let's make note of the following details before proceeding with this investigation.

1. The key to the forklift had been left in the ignition.
2. One worker proceeded to stand on the forks of the forklift while the other's field of view was obstructed.
3. The forklift collided with a structural steel column resulting in permanent injury to one of the workers.

These seem to be the cause of the incident, but we also need to look at the Occupational Health and

Safety Act (OHSA) to assist further in this investigation.

Case Study: Question 2

What section(s) of the Act would be applicable in this incident?

- A. The OHSA, Sections 25, 26 and 27
- B. The OHSA, Section 28
- C. The OHSA, Section 1
- D. All of the above

Select a response and then select Submit.

Uncovering the Details

Upon reading the Act, your attention is focused on the following definitions of a competent person.

A competent person...

- A. is qualified because of knowledge, training and experience to organize the work and its performance;
- B. is familiar with the OHSA and the regulations that apply to the work, and
- C. has knowledge of any potential or actual danger to health or safety in the workplace.

Uncovering the Details Continued

Based on your investigation, you are now able to uncover the following:

- Neither worker had received forklift training, nor were they certified or authorized to operate any forklift.
- The company was unable to provide documentation to support a policy or procedure for training workers on how to operate forklifts.
- The supervisor left the key in the ignition of the forklift.

Based on your investigation, who would be responsible in this incident?

Case Study: Question 3

Who is likely to be charged in this incident?

- A. The employer
- B. The supervisor
- C. The workers
- D. Both the employer and the supervisor

Select a response and then select Submit.

The Final Report

- Training - Neither worker received forklift training, nor were they certified or authorized to operate any forklifts.

- OHSA - Under the Ontario Health and Safety Act (OHSA), an employer has the duty to ensure that the measures and procedures are carried out at a workplace. (Section 25(1)(c), Section 27(1)(a))
- Regulations - Ontario Regulation 851 - the Industrial Establishments Regulation, requires that a lifting device be operated only by a "competent person." (Section 51(2)(a)(i))
- Worker - The worker was not a "competent person" as defined by the OHSA.
- Penalties - The company received a fine of \$50,000. The supervisor received a fine of \$3,000. A 25% victim surcharge was also imposed.

Case Closed

Great Investigative work! You were able to apply your learning to this workplace incident and determined that due diligence was not demonstrated by the employer and supervisor.

Module 3 Summary

Workplace incidents can have financial and criminal consequences for the supervisors and employers that do not exercise due diligence.

Module 4: Course Completion

Conclusion

In this module, you will review the course summary and complete the final knowledge check. This module will take approximately 15 minutes to complete.

Course Summary

In this course, we have reviewed the following:

- Summary of duties and responsibilities of workplace parties
- The RACE process used for managing hazards
- Examples of due diligence in the workplace
- Steps and strategies for demonstrating due diligence

And you have also completed an investigation case study to determine if due diligence was demonstrated.

WSPS Resources

WSPS offers a wide range of expert training solutions to provide supervisors with the knowledge and skills they need to succeed.

This includes many additional training options available to help you:

- Learn how to navigate the OHS Act and understand the duties of a supervisor. (Health & Safety Awareness Training for Ontario Supervisors, Safety, Health & the Law)

- Learn how to recognize, assess and control the hazards in your workplace.
- Grow the skills needed to carry out OHSA legal duties. (Workplace Inspections, Accident Investigations, etc)
- Be a truly effective supervisor(The Effective Supervisor)

You can see the full list on the wsps.ca site by clicking the button below.

Course Completion

In order to complete the course, you will be asked ten multiple choice and true or false questions. These questions cover information learned earlier in this course. A pass mark is not required however, each question must be answered. If you would like to review any information, use the Menu on the left to navigate to the various topics covered in this course.

Final Knowledge Check (1 of 10)

Section One of the Act defines a competent person as “a person who...”

- A. is qualified because of knowledge, training and experience to organize the work and its performance
- B. is familiar with the Act and the regulations that apply to the work
- C. has knowledge of any potential or actual danger to health or safety in the workplace
- D. all of the above.

Select your response and then select Submit.

Final Knowledge Check (2 of 10)

A supervisor is defined as a person who...

- A. has at least 5 workers reporting to them
- B. has either charge of a workplace or authority over a worker
- C. has knowledge of any potential or actual danger to health or safety in the workplace
- D. all of the above.

Select your response and then select Submit.

Final Knowledge Check (3 of 10)

A supervisor is responsible for training workers on how to do their job safely, enforcing rules such as the use of safety equipment and machine guarding, and...

- A. taking every precaution reasonable
- B. establishing a health and safety program
- C. making changes to workplace policies

Select your response and then select Submit.

Final Knowledge Check (4 of 10)

True or False

Complying with all parts of the Act means that I have demonstrated due diligence.

Select a response and then select Submit.

Final Knowledge Check (5 of 10)

True or False

It is the responsibility of the supervisor to provide information and instruction to all workers.

Select your response and then select Submit.

Final Knowledge Check (6 of 10)

True or False

When providing training to workers, it is best to use the “I show you, you show me” approach.

Select your response and then select Submit.

Final Knowledge Check (7 of 10)

Maintaining a healthy and safe workplace is a shared responsibility among...

- A. the employer and supervisor
- B. the supervisor and workers
- C. the employer, supervisor and workers

Select your response and then select Submit.

Final Knowledge Check (8 of 10)

Which of the following could demonstrate a supervisor took every precaution reasonable in the circumstance to protect workers?

- A. records of coaching for workers
- B. pre-use inspection records for equipment
- C. training records for workers
- D. all of the above

Select your response and then select Submit.

Final Knowledge Check (9 of 10)

True or False

It is only necessary for a supervisor to document training they provided, not on-the-job coaching or feedback.

Select your response and then select Submit.

Final Knowledge Check (10 of 10)

True or False

Fines and penalties for individuals upon conviction, can be up to \$100K in fines per charge, and up to 12 months imprisonment.

Select your response and then select Submit.

Knowledge Check Complete

Great work! You have completed the final knowledge check questions for this eCourse.

You should now have a better understanding of the internal approach to due diligence.